

M/s R.B. Edibells Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 March 2019 · Writ-C No. 7340 of 2019 · **Writ disposed; Executive Engineer to consider clause 6.14 instalment application within one month.**

HEADNOTE

A consumer seeking instalments of admitted electricity dues of Rs.12,67,958 under clause 6.14 of the U.P. Electricity Supply Code, 2005 was directed to apply to the Executive Engineer, who was to consider the claim in accordance with that clause, as far as possible within one month. The Court did not itself grant instalments.

FACTUAL SUMMARY

M/s R.B. Edibells Pvt. Ltd. filed a writ seeking permission to pay electricity dues of Rs.12,67,958 in instalments. It invoked clause 6.14 of the Electricity Supply Code, 2005, under which a licensee may allow instalments if the consumer proves financial distress, and accepted the liability. Counsel for the petitioner and for the distribution licensee were heard. The Division Bench disposed of the petition by directing an application to the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment of electricity dues in financial distress

HOLDING

Where a consumer accepts electricity dues and seeks to pay them in instalments under clause 6.14 of the Electricity Supply Code, 2005, the High Court will not itself grant the facility; the consumer may apply to the Executive Engineer, who shall consider the claim in accordance with clause 6.14, as far as possible within one month. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Clause 6.14 entitles the licensee to recover electricity dues in instalments if the consumer proves financial distress; the Court relegated the consumer, who accepted the dues, to an application before the Executive Engineer for consideration under that clause. ¶ 1

installment-payment-clause-6.14 The writ seeking court-ordered instalments of Rs.12,67,958 was disposed of by directing the Executive Engineer to consider a clause 6.14 application in accordance with the Code, without granting instalments on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN FINANCIAL DISTRESS SO AS TO QUALIFY FOR INSTALMENTS UNDER CLAUSE 6.14

Left to the Executive Engineer to consider on application, in accordance with clause 6.14. ¶ 1

NOT DECIDED — WHETHER INSTALMENTS OF RS.12,67,958 SHOULD BE GRANTED, AND ON WHAT TERMS

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